

HOUSE No. 835

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the home rule charter of the city of Easthampton.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/16/2025</i>

HOUSE No. 835

By Representative Gómez of Easthampton, a petition (accompanied by bill, House, No. 835) of Homar Gómez (with the approval of the mayor and city council) that the city of Easthampton be authorized to amend the charter of said city relative to ranked choice voting. Election Laws.
[Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 5068 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the home rule charter of the city of Easthampton.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1-7 of Article 1 of the charter of the city of Easthampton which is
2 on file in the office of the archivist of the commonwealth pursuant to section chapter of chapter
3 43B of the General Laws is hereby amended by fully replacing the existing definition of
4 “Ranked Choice Voting” with the following:

5 Ranked Choice Voting – The words “ranked choice voting” shall mean an election
6 system in which each voter shall cast a single vote by ranking candidates in order of preference,
7 indicating the voter’s first choice, second choice, third choice, and so on, continuing until the
8 voter has assigned a single numerical ranking to each candidate on the ballot or until the voter

chooses to stop ranking. Definitions specific to ranked choice voting shall have the following meanings:

Continuing Candidate – The words “continuing candidate” shall mean any candidate that has not been declared as elected or defeated.

Concluded Ballot – The words “concluded ballot” shall mean any ballot which does not contain a highest-ranked continuing candidate.

Proportional Value – The words “proportional value” shall mean a persistent decimal number associated with each non-concluded ballot. Every ballot shall have a starting proportional value equal to one.

Winning Threshold – The words “winning threshold” shall mean a value equal to the total number of non-concluded ballots cast in a race, divided by the sum of the number of unelected positions remaining in that race plus one.

Transfer Factor – The words “transfer factor” shall mean a value equal to the difference between the total number of votes received by an elected candidate and the current winning threshold, divided by the total number of votes received by the elected candidate.

Tabulation Process – The words “tabulation process” shall mean the process of determining the results of an election that uses ranked choice voting. The election shall be tabulated in successive rounds, with each round proceeding as follows:

(a) Count – Each continuing candidate’s vote total shall be reset to zero. The winning threshold shall be recalculated for the current round. Each ballot shall be counted by adding its

current proportional value to the vote total for the highest-ranked continuing candidate on that ballot.

(b) Declare – If any continuing candidate has a vote total that is greater than the current winning threshold, that candidate shall be declared elected, and a transfer value for that candidate shall be calculated. If a candidate was elected, all ballots that were counted for that candidate shall have their previous proportional value multiplied by the transfer value for that candidate, and the result shall be recorded as the new proportional value for that ballot. If no candidate was elected, then the candidate who has the lowest vote total shall be declared defeated.

(c) Repeat – If the number of elected candidates is equal to the number of positions being elected or if there are no more continuing candidates, this is the last round. Otherwise, begin a new round.

SECTION 2. Article 7 of said charter is hereby amended by striking out sections 7-1.1 and 7-1.2, and by inserting at the end of section 7-1 the following:

Notwithstanding any general or special law to the contrary, elections for all elected city offices shall be conducted using ranked choice voting as defined in section 1-7 of Article 1, unless the total number of qualified candidates is equal to one, in which case plurality voting shall be used.

SECTION 3. The president of the city council of the city of Easthampton shall appoint an ad hoc committee to revise the existing ranked choice voting ordinance. The ad hoc committee shall consist of the city clerk or the city clerk's designee, 1 member of the board of registrars of voters, 2 members of the city council and 3 registered voters of the city.

51 The ad hoc committee shall present its proposed ordinance revisions to the city council
52 for its review and adoption, subject to amendment by the city council and approval by the mayor
53 pursuant to the procedural requirements for ordinances under the charter of the city of
54 Easthampton.

55 SECTION 4. Section 2 shall be placed on the ballot for acceptance by the voters of the
56 city of Easthampton at the next city election. The city solicitor shall prepare and include a
57 summary of the question to be printed on the ballot.

58 SECTION 5. Sections 1 and 3 shall take effect upon acceptance by the voters of section 2
59 pursuant to this act but shall not be implemented for an election that may occur within 45 days
60 after approval of any such ballot question.